

		While Defendants do not cite a specific statute, Defendants appears to move to set aside the default entered against them pursuant to Code of Civil Procedure section 473, subdivision (b), which permits the court to “relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” While “[a] default and default judgment may be set aside pursuant to the provisions of Code of Civil Procedure, section 473, subdivision (b), [] the motion must be made within six months after entry of the default.” (<i>Manson, Iver & York v. Black</i> (2009) 176 Cal.App.4th 36, 42.) The Court entered default against Defendants on 12/20/25 (ROA 21, 22.) Defendants’ motion was filed on 3/10/26 and is therefore timely. Defendants contend they “did not know I had to send a response letter to the court stating that I will be there January 30, 2026 after I was served the paperwork to set aside the defaults to all the defendants.” (ROA 30.) “Pro. per. litigants are held to the same standards as attorneys.” (<i>Kobayashi v. Superior Court</i> (2009) 175 Cal.App.4th 536, 543 [citations omitted].) Mistake is not a ground for relief when it is the result of general ignorance of the law. (<i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 32 [citation omitted].) Defendants’ contention they were not aware they were required to respond is not grounds for relief under section 473. Moreover, section 473, subdivision (b) provides, “[a]pplication for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted . . .” Defendants have not included a copy of the answer to the motion.
12.	GOVEA VS. CITY OF FULLERTON 2023-01360733	DEMURRER TO AMENDED CROSS-COMPLAINT Cross-defendant United Specialty Insurance Company’s (USIC) Demurrer to Plaintiff’s Second Amended Complaint is CONTINUED to 9/15/26, at 9:00 a.m. in Department C32 as USIC’s counsel did not sufficiently meet and confer prior to filing the demurrer. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).)

		Counsel for USIC states his office sent City’s counsel an email setting forth grounds for demurrer on 4/8/26. (Schmitthenner Decl., ¶ 3, Ex. 1.) City’s counsel then sent an email response the same day. (Schmitthenner Decl., ¶ 3, Ex. 1.) Near the end of her email, counsel for City states, “The timeliness of this ‘meet and confer’ is questionable – isn’t your response already due? You had previously informed me that you were going to file a demurrer and provided an estimated time. Was this a good faith meet and confer?” This does not satisfy the meet and confer requirement. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. USIC is to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties’ meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar.
13.	CABRERA VS. VOLKSWAGEN A.G. 2026-01541961	1. DEMURRER TO COMPLAINT Defendants’ demurrer to the seventh and eighth causes of action is SUSTAINED with 20 days leave to amend. The demurrer to the remaining causes of action is OVERRULED. Defendants demur to the fifth through ninth causes of action of the complaint. Plaintiff has not filed an opposition. <u>Fifth and Sixth Causes of Action - Violations of Business and Professions Code §§ 17200 and 17500</u> The fifth and sixth causes of action for violations of Business and Professions Code §§ 17200 and 17500 are alleged against all defendants. Defendants argue these causes of action fail because the complaint does not state facts sufficient to state a cause of action and because Plaintiff has an adequate remedy at law. <u>Sufficient Facts to State a Cause of Action</u> The complaint generally alleges Defendants engaged in unlawful business practices by placing a defective vehicle into the stream of commerce without warning the general public or remedying the defects and made statements that were untrue or misleading regarding this vehicle model’s safety, reliability, and functionality through advertising, marketing, and other publications. Although Plaintiff pleads general allegations in support of these causes of action, the complaint provides Defendants “the necessary information to permit [them] to gather and preserve the relevant